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1878-1961
Richard B. Foster
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1928-2000
John L. Collins
1926-2001

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September 19, 2013

Mike Bitondo

Permit Section

Water Resources Division, Department of Environmental Quality

P.O. Box 30458

Lansing, MI 48909

Dear Sir:

Re: Comments on NPDES Discharge Permit for City of Cadillac, Permit No. MI0020257

In accordance with your Department's requirements to submit objections or comments by September 19, 2013, to the above draft permit, we are writing on behalf of City of Cadillac ("City") to make the following comments and objections on the draft permit.

First, the City objects to the permit conditions in Part I Section A.1. and Part I Section A.1.f. which require weekly testing for cyanide, when historical testing results do not show a reasonable potential to cause or contribute to an excursion above a water quality value. In fact, historical test results have not exceeded the proposed maximum limit for available cyanide of .16 pounds per day with the exception of one result over the last permit period. We enclose data to demonstrate the low levels of cyanide results which were disregarded simply because they were below the level of detection. See attachment. These results when included in the analysis indicate the absence of any need for a water quality based effluent limit and demonstrate the absurdity of imposing weekly monitoring. See Exhibit 1. The failure of the Department by policy or rule to take into account sample results below detection is arbitrary and capricious and will force the City to incur substantial additional expense, which is neither warranted nor useful. Past testing requiring only quarterly sampling for cyanide without a limit was and is sufficient.

Second, the City objects to the permit condition in Part I Section A.5. Operation, Maintenance & Replacement/Asset Management. This permit condition is not expressly required or authorized by the

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federal Clean Water Act, as amended; Michigan's Water Resources Commission Act, Part 17 of the Natural Resources and Environmental Protection Act of 1995, as amended; or any applicable regulations. This permit condition unduly requires the production of voluminous and largely irrelevant information and improperly limits the authority and flexibility of the permittee to maintain and operate its facility. Aside from being contrary to law and arbitrary and capricious, this permit condition fails to recognize that this permittee does not regulate all of the municipalities whose collection systems discharge to the permittee. This permit conditions is neither necessary nor reasonable in that the City has properly complied with its past and existing permit and has implemented a capital improvement program that has suitably maintained the operation of the permittee's system. There is no demonstrable pattern of malfeasance or misfeasance by the City that would warrant this heavy-handed condition. The additional expense of complying with this additional three-page condition inappropriately requires expenditures without providing corresponding State funds for compliance as required by various provisions of Michigan's Constitution, including Mich. Const. 1963, art 9, section 29. The City requests that the permit condition be stricken in its entirety.

In submitting these objections, this office does not waive any additional rights or claims of the City in connection with the review and proposed issuance of the draft permit. We look forward to the Department's review and response to these objections. Please advise if you have any questions regarding the permittee's system.

Very truly yours,

FOSTER SWIFT COLLINS & SMITH PC



Charles E. Barbieri

CEB:ldh

cc: Jeff Dietlin

KARLaboratories, Inc.

September 18, 2013

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Kalamazoo, MI 49001

Phone 269 381-9666

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www.karlabs.com

Mr. Jeffrey M. Dietlin, Director of Utilities
City of Cadillac
200 North Lake Street
Cadillac, Michigan 49601

Dear Mr. Dietlin,

As requested, we have compiled the actual instrument values for all non-detect Available Cyanide results reported for City of Cadillac samples since 2008. Because some analyst discretion is needed when interpreting the raw data and a sample value by itself can be somewhat misleading, I am including the value for the accompanying method blank that was analyzed with each sample. The data is summarized in the following table:

KAR Sample No.	Sample Value (ug/L)	Blank Value (ug/L)
093128-01	0.187	-0.560
094491-01	1.040	0.294
100379-01	0.755	-0.188
101692-01	1.403	0.092
103098-01	0.171	-1.117
104620-01	0.865	-0.879
110478-01	-3.581	-4.610
111717-01	-0.320	-0.823
113221-01	1.517	0.871
114817-01	1.349	-0.524
122707-01	0.438	-0.621
125208-01	0.197	-0.713
127833-01	0.065	-0.677
130826-01	1.231	-0.031
133299-01	0.714	-0.373
136094-01	1.241	-0.307

It is important to note that the above values are raw measurements that fell outside the instrument's calibrated range when they were obtained. With respect to accuracy, these values should be regarded as suspect rather than approximate. They have very little quantitative value except to show that the instrument's calibrated response was below the 2 ug/L reporting limit.

Please call me (269.381.9666 x.219) if you have any questions regarding this information.

Sincerely,

David R. Alkema
Laboratory Manager